

25VECV00592 25VECV00592

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-03

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Case Number: 25VECV00592 Hearing Date: August 3, 2026 Dept: I

25VECV00592 SERGIO PENA v. LOS

ANGELES UNIFIED SCHOOL DISTRICT, et al.

August 3, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel

Initial Responses

I.

Background

On February 3, 2025, Plaintiff Sergio

Pena ("Plaintiff") filed this action against Defendants Los

Angeles Unified School District ("LAUSD"), Los Angeles County Office of

Education ("Office of Education"), City of Los Angeles ("City"), County of Los

Angeles ("County"), West Valley Occupational Center ("West Valley"), John Doe

("Doe"), and Does 1 to 50 alleging five causes of action: (1)

assault; (2) battery; (3) intentional infliction of emotional distress; (4)

negligent hiring, supervision, and retention; and (5) negligence.

On July 8, 2026, LAUSD filed the instant motion to deem

its Request for Admissions, Set One, as admitted by Plaintiff. LAUSD also requests sanctions.

To date, the motion remains unopposed.

II. Motion

to Compel Initial Responses

Request for Admissions

If a party to whom requests for admissions are directed fails to serve a timely response, the party seeking discovery may move the court for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (CCP § 2033.280(b).) The party to whom the requests for admission are directed waives any objection to the requests upon their failure to timely respond. (CCP § 2033.280(a).)

LAUSD propounded discovery requests on Plaintiff on April 21, 2026. (Fajardo Decl., ¶ 3; Ex. A.)

Plaintiff failed to respond. (Fajardo Decl., ¶ 6.) Under Code of Civil Procedure section 2033.280, subdivision (c), the Court shall deem the matters admitted unless it finds the responding party served, before the hearing, a proposed response in substantial compliance with section 2033.220. To date, Plaintiff has not served substantially compliant responses. Accordingly, LAUSD's motion to compel is granted.

Sanctions

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (CCP § 2023.030(a).) Misuse of the discovery process includes "[f]ailing to respond or to submit to an authorized method of discovery." (CCP § 2023.010(d) and (g).)

LAUSD requests monetary sanctions in the amount of \$1,775.00, consisting of four hours associate work drafting the instant motion at an hourly rate of \$230.00, an anticipated two hours partner work reviewing the opposition and drafting a reply and one hour partner work for appearing at the hearing at an hourly rate of \$265.00, and a \$60.00 filing fee. (Fajardo Decl., ¶ 7.) The Court finds the amount of hours requested to be unreasonable, as no opposition has been filed and the motion is simple and straightforward.

Accordingly, the Court reduces the sanctions to a reasonable amount of \$537.50, consisting of 1.5 hours associate work for drafting the instant motion at an hourly rate of \$230.00, 0.5 hours partner

work for appearing at the hearing at an hourly rate of \$265.00, and a \$60.00 filing fee.

III.

Conclusion

LAUSD's motion to deem its Request for Admissions, Set

One, as admitted by Plaintiff is granted.

Plaintiff's responses to LAUSD's Request for Admissions, Set One, are deemed admitted.

Additionally, Plaintiff, in pro per, is to pay

defense counsel sanctions in the amount of \$537.50 within 20 days of this hearing.

Moving party to give notice.